

1.

CASE #	CASE NAME	HEARING NAME
CVRI2404830	RUST vs PIERCE	MOTION FOR (1) LEAVE TO FILE ANSWER

Tentative Ruling:

CCP §473(b) allows the court to relieve a party from a default caused by “mistake, inadvertence, surprise, or neglect” if the party applies within a “reasonable time, in no case exceeding six months.” “Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed.” (CCP § 473(b).) That requirement demonstrates the moving party’s “good faith and readiness to proceed on the merits.” (*Jimenez v. Chavez* (2023) 97 Cal.App.5th 50, 63.) Substantial compliance may suffice when the party filed a copy of their proposed answer with the court before the court rules. (*Carmel, Ltd. v. Tavoussi* (2009) 175 Cal.App.4th 393, 403.)

Here, the rejected answer (alleged to be for technical reasons) is attached as an exhibit to the supporting declaration. (Exhibit B to the Kane Declaration filed 7/29/26.) Defendant identifies it as the answer she proposes to file, and Plaintiff recognizes it as such. Therefore, the proposed pleading requirement is satisfied.

The record also shows grounds for relief. Defendant acted promptly after the parties’ stipulation was rejected, attempted to file an answer before the asserted entry of default. Defendant also resubmitted the answer after receiving the court’s rejection notice and filed this motion within 6 months. Defendant also answered the FAC, showing an intent to defend. Plaintiff identifies no prejudice and does not oppose relief.

Parties are ordered to appear for the hearing and be prepared to address the following:

- 1. The motion is filed by attorneys for Defendant “Irma Pierce.” However, there are (1) Irma Pierce, an individual, and (2) Irma Pierce, as trustee of the Pierce Trust Dated June 26, 2014. Exhibit “A” to the motion is a copy of the Rejected “Irma Pierce’s Answer to Shelley Rust’s Second Amended Verified Complaint,” which also does not make clear on whose behalf it is sought to be filed. For whom is the request to set aside the entry of default entered June 11, 2026 and leave to file Answer?**

If the court does grant the request to set aside the entry of default as to either or both of capacities of Irma Pierce, moving party must submit a proposed Answer within ten (10) days of the Court’s order, in which it must be clear for whom the Answer is being filed, not just as “Irma Pierce”, but identifying the pertinent capacity.

After the hearing, upon the Court's ruling, moving party is also ordered to submit a proposed order consistent with the Court's ruling by no later than September 21, 2026, by 5:00 p.m.

Plaintiff's request to vacate the 5/14/26 sanctions is not part of Defendant's noticed motion and is not determinative to the requested relief. Plaintiff should file a proper request. Court does not rule on this request.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2502395	HALL vs CITY OF RIVERSIDE	MOTION FOR RECONSIDERATION RE ORDER FOR SANCTIONS

Tentative Ruling:

The motion is granted. The sanctions in the amount of \$250 issued on Cross-Complainant County of Riverside and counsel Christopher Lockwood on July 28, 2026 are vacated.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506478	RIVERA vs MCC PIPELINE, INC.	MOTION FOR RELIEF UNDER CCP SEC 473(B)

Tentative Ruling:

Under CCP §473(b), the court has broad discretion to relieve a party “upon any terms as may be just...from a judgment, dismissal, order or other proceeding taken against him or her through his or her mistake, inadvertence, surprise or excusable neglect.” CCP § 473(b) notably provides for two distinct types of relief – “discretionary” and “mandatory.” (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1124.) Under the discretionary relief provision, the court has discretion to allow relief from a “judgment, dismissal, order, or other proceeding taken against” a party or his or her attorney on a showing of “mistake, inadvertence, surprise, or excusable neglect.” (*Ibid*; *see also Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 438.)

Where discretionary relief is sought, as it is here, the burden is on the moving party to show that any neglect was excusable. This means showing the default or adverse action could not have been avoided through the exercise of ordinary care. (*Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58.) Evidence the litigant was “busy” and “forgot” is not excusable neglect. (*Andrews v. Jacoby* (1919) 39 Cal.App. 382, 383-384.)

Plaintiffs seek relief under CCP § 473(b) from discovery orders entered after counsel's “good faith but thwarted attempts to delivery discovery, file an opposition to the motion(s), and appear remotely.” They claim these attempts were derailed by software